
DOCKET NO. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

JOINT STIPULATIONS OF FACT

The Bureau of Enforcement (BOE) and Respondent Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC (collectively, “Hapag-Lloyd”) conferred on December 27, 2021 and [[continued discussions on (xx, xx) via email . . .]] regarding possible joint stipulations of fact per the Order Rejecting Proposed Schedule filed on December 20, 2021 in Docket No. 21-09.¹

Hapag-Lloyd AG stipulates to the following facts:

1. Hapag-Lloyd AG is a vessel-operating common carrier (VOCC) headquartered in Hamburg, Germany at Postfach, 102626, Ballindamm 25, 2000 Hamburg 1, Germany.
2. Hapag-Lloyd (America) LLC operates as Hapag-Lloyd AG’s agent in the United States and has offices at 5515 Spalding Drive, Peachtree Corners, GA 30092.
3. Hapag-Lloyd Container Line GmbH converted into a stock company known as Hapag-Lloyd AG on or about July 21, 2006.
4. Respondent Hapag-Lloyd AG is a member of THE Alliance.

¹ [[Counsel for the BOE and Hapag-Lloyd (the Parties) have agreed to review the possibility of further stipulations as Discovery progresses.]]

5. Hapag-Lloyd AG is a common carrier as defined by 46 U.S.C. § 40102(7).
6. Hapag-Lloyd AG provides ocean transportation to and from the ports of Los Angeles and Long Beach (collectively, LALB).
7. Hapag-Lloyd AG discharges cargo and/or collects empty containers at several marine terminals, including but not limited to: Trapac Terminal, Total Terminals, Inc., Yusen Terminals, Inc., International Transportation Service, Inc., and SSA Terminal at Pier A.
8. Hapag-Lloyd AG provided ocean transportation for the following eleven containers:

<u>Container Number</u>
GESU3644906
TEMU1467361
FFAU2104882
FFAU2094681
SEGU5670431
HLBU1593348
HLXU9003126
HLBU8048860
HLBU8039554
HLBU8038687
HAMU1302165

5. Hapag-Lloyd (America) issued the following detention invoices on behalf of Hapag-Lloyd AG:

<u>No.</u>	<u>Container Number</u>	<u>Invoice No.</u>
1	GESU3644906	2119642180
2	TEMU1467361	2119704796
3	FFAU2104882	2119711233
4	FFAU2094681	2119721993
5	SEGU5670431	2119731378
6	HLBU1593348	2119739508
7	HLXU9003126	2119739508
8	HLBU8048860	2119741085

9	HLBU8039554	2119748477
10	HLBU8038687	2119748477
11	HAMU1302165	2119752845

The BOE stipulates to the following facts:

1. Hapag-Lloyd (America) LLC is not an ocean common carrier, marine terminal operator, or ocean transportation intermediary.

DATED: March 16, 2022

Respectfully submitted,



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MARYANNE MUNDY

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